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Title 21 —Food and Drugs

Chapter I —Food and Drug Administration, Department of Health and Human Services

Subchapter B —Food for Human Consumption

Part 112 —Standards for the Growing, Harvesting, Packing, and Holding of Produce for Human Consumption

Subpart A —General Provisions

Authority: 21 U.S.C. 321, 331, 342, 350h, 371; 42 U.S.C. 243, 264, 271.

Source: 80 FR 74547, Nov. 27, 2015, unless otherwise noted.

Editorial Note: Nomenclature changes to part 112 appear at 81 FR 49896, July 29, 2016.

§ 112.2 What produce is not covered by this part?

(a) The following produce is not covered by this part:

- (1) Produce that is rarely consumed raw, specifically the produce on the following exhaustive list:
Asparagus; beans, black; beans, great Northern; beans, kidney; beans, lima; beans, navy; beans, pinto; beets, garden (roots and tops); beets, sugar; cashews; cherries, sour; chickpeas; cocoa beans; coffee beans; collards; corn, sweet; cranberries; dates; dill (seeds and weed); eggplants; figs; ginger; hazelnuts; horseradish; lentils; okra; peanuts; pecans; peppermint; potatoes; pumpkins; squash, winter; sweet potatoes; and water chestnuts.
- (2) Produce that is produced by an individual for personal consumption or produced for consumption on the farm or another farm under the same management; and
- (3) Produce that is not a raw agricultural commodity.

(b) Produce is eligible for exemption from the requirements of this part (except as noted in paragraphs (b)(1), (2), and (3) of this section) under the following conditions:

- (1) The produce receives commercial processing that adequately reduces the presence of microorganisms of public health significance. Examples of commercial processing that adequately reduces the presence of microorganisms of public health significance are processing in accordance with the requirements of part 113, 114, or 120 of this chapter, treating with a validated process to eliminate spore-forming microorganisms (such as processing to produce tomato paste or shelf-stable tomatoes), and processing such as refining, distilling, or otherwise manufacturing/processing produce into products such as sugar, oil, spirits, wine, beer or similar products; and
- (2) You must disclose in documents accompanying the produce, in accordance with the practice of the trade, that the food is “not processed to adequately reduce the presence of microorganisms of public health significance;” and
- (3) You must either:

- (i) Annually obtain written assurance, subject to the requirements of paragraph (b)(6) of this section, from the customer that performs the commercial processing described in paragraph (b)(1) of this section that the customer has established and is following procedures (identified in the written assurance) that adequately reduce the presence of microorganisms of public health significance; or
- (ii) Annually obtain written assurance, subject to the requirements of paragraph (b)(6) of this section, from your customer that an entity in the distribution chain subsequent to the customer will perform commercial processing described in paragraph (b)(1) of this section and that the customer:
 - (A) Will disclose in documents accompanying the food, in accordance with the practice of the trade, that the food is “not processed to adequately reduce the presence of microorganisms of public health significance”; and
 - (B) Will only sell to another entity that agrees, in writing, it will either:
 - (1) Follow procedures (identified in a written assurance) that adequately reduce the presence of microorganisms of public health significance; or
 - (2) Obtain a similar written assurance from its customer that the produce will receive commercial processing described in paragraph (b)(1) of this section, and that there will be disclosure in documents accompanying the food, in accordance with the practice of the trade, that the food is “not processed to adequately reduce the presence of microorganisms of public health significance”; and
- (4) You must establish and maintain documentation of your compliance with applicable requirements in paragraphs (b)(2) and (3) in accordance with the requirements of subpart O of this part, including:
 - (i) Documents containing disclosures required under paragraph (b)(2) of this section; and
 - (ii) Annual written assurances obtained from customers required under paragraph (b)(3) of this section; and
- (5) The requirements of this subpart and subpart Q of this part apply to such produce; and
- (6) An entity that provides a written assurance under § 112.2(b)(3)(i) or (ii) must act consistently with the assurance and document its actions taken to satisfy the written assurance.